

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Donaghy	Team: Squad #14	CCRB Case #: 202100061	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 12/11/2020 8:45 PM	Location of Incident: Northwest Corner of Junius Street and Sutter Avenue	Precinct: 73	18 Mo. SOL 6/11/2022	EO SOL 6/11/2022	
Date/Time CV Reported Fri, 12/11/2020 11:25 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 01/04/2021 10:26 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Abir Noor	21625	959847	PSA 2
2. POM Volodymyr Burdeynyy	14915	954580	PSA 2
3. POM John Espinal	19909	962383	PSA 2

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Favio Quizhpi	00000	948119	PSA 2

Officer(s)	Allegation	Investigator Recommendation
A.POM Abir Noor	Abuse: Police Officer Abir Noor stopped the vehicle in which § 87(2)(b) was an occupant.	[REDACTED]
B.POM Volodymyr Burdeynyy	Abuse: Police Officer Volodymyr Burdeynyy stopped the vehicle in which § 87(2)(b) was an occupant.	[REDACTED]
C.POM John Espinal	Abuse: Police Officer John Espinal stopped the vehicle in which § 87(2)(b) was an occupant.	[REDACTED]
D.POM Abir Noor	Abuse: Police Officer Abir Noor frisked § 87(2)(b)	[REDACTED]
E.POM Abir Noor	Force: Police Officer Abir Noor used a taser on § 87(2)(b)	[REDACTED]

Case Summary

On December 11, 2020, SGT Ricardo Lewis of PSA 2 reported the following to IAB on behalf of § 87(2)(b). On January 4, 2021, the CCRB received this case.

On January 7, 2021, the CCRB called § 87(2)(b). During this call, § 87(2)(b) stated that he wished to consult with his attorney before providing the CCRB with a statement due to his open criminal case. § 87(2)(b) asked to be called back on January 12, 2021. On January 12, 2021, the CCRB called § 87(2)(b) and § 87(2)(b) stated that he had spoken with his attorney, § 87(2)(b) of the Legal Aid Society, and that she had requested to speak with the undersigned.

On January 13, 2021, the CCRB called § 87(2)(b) who confirmed that she is the legal representative of § 87(2)(b). The CCRB explained the process of providing a statement to the CCRB. § 87(2)(b) stated that she wished to call and speak to § 87(2)(b) and that afterwards she would call the CCRB back. Later that day, § 87(2)(b) called the CCRB and stated that she had advised § 87(2)(b) to not provide a sworn statement until the resolution of the criminal charges against him. A second call was then placed to § 87(2)(b) on January 13, 2021, and § 87(2)(b) confirmed that he had consulted with § 87(2)(b) and would not provide a statement until the criminal charges against him related to this incident were resolved.

§ 87(2)(g)

Squad No.: 14

Investigator:	<u>Matthew Donaghy</u> Signature	<u>Inv. Matthew Donaghy</u> Print Title & Name	<u>February 10, 2021</u> Date
Squad Leader:	<u>Cassandra Fenkel</u> Signature	<u>IM Cassandra Fenkel</u> Print Title & Name	<u>February 12, 2021</u> Date
Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date